

TAB 23



Los Angeles Unified School District

247

333 South Beaudry Ave,
Los Angeles, CA 90017

Board of Education Report

[Return to the Order of Business](#)

File #: ROC-004-23/24, **Version:** 1

Report of Correspondence including Williams Settlement Uniform Complaint Quarterly Report Summary

BOARD OF EDUCATION OF THE CITY OF LOS ANGELES
Governing Board of the Los Angeles Unified School District

November 14, 2023

REPORT OF CORRESPONDENCE

The following correspondence addressed to the Board of Education is submitted with the recommended Disposition, “Refer to Superintendent for referral to Office of the General Counsel to take all steps necessary to protect the interests of the Board of Education, including assignment to outside counsel; Controller to draw warrants in such amounts as may be necessary for the payment of costs and fees upon invoices as approved by the Office of the General Counsel”:

FROM	LEGAL ACTION
1. Arias Sanguinetti Wang & Torrijos LLP	Summons & Complaint for Damages for: (1) Negligence (2) Negligent Supervision (3) Negligent Hiring and/or Retention (4) Negligent Failure to Warn, Train or Educate (5) Intentional Infliction of Emotional Distress (6) Sexual Battery (Civil Code § 1708.5 (7) Sexual Assault (8) Gender Violence (9) Violation of Penal Code § 288 (10) Violation of Penal Code § 647.6 (11) Violation of Civil Rights (Civil Code §§ 51.7, 51.9, 52, 52.1, 52.3 & 52.4); Case No. 23VECV04192; Superior Court of the State of California, County of Los Angeles; Jane Roe, Plaintiff v. Los Angeles Unified School District; Richard Alexander Turner, and Does 1 through 100, inclusive, Defendants.
2. Arias Sanguinetti Wang & Torrijos LLP	Summons & First Amended Complaint for Damages for: 1) Negligence [California Government Code Section 820(a), 815.2(a) & 815.4]; 2) Negligence [California Government Code Section 820(a), 815.2(a) & 815.4]; 3) Negligent Supervision/ Training/ Hiring/ Retention; 4) Negligent Supervision/ Training/ Hiring/ Retention 5) Sexual Battery 6) Assault 7) Violation of Civil Rights [California Civil Code Sections 51.9] 8) Violation of Civil Rights [California Civil Code Sections 51.7, 52, 52.1, 52.3 & 52.4; Case No. 22STCV41035; Superior Court of the State of California for the County of Los Angeles; John Doe, Plaintiff v. Boy Scouts of America Greater Los Angeles Area Council; Boy Scouts of America Los Angeles Area; Los Angeles Unified School District; Ramona Elementary School; City of Los Angeles; City of Los Angeles Department of Recreation and Parks; Lemon Grove Recreation Center; Michael Andrew Palkovic; and Roes 9 through 100, Defendants.
3. Chudacoff, Friedman, Simon, Graff & Cherin	Summons and Complaint: 1. Premises Liability; Case No. 23STCV19166, Superior Court of California, County of Los Angeles; Plaintiff: Coda Joseph Baker, a minor by and through his Guardian Ad Litem, William Baker v. Defendant: Los Angeles Unified School District; and Does 1 to 100,

Inclusive.

4. Downtown L.A. Law Group
 Summons & Complaint for Damages: 1. Assault 2. Battery 3. Intentional Infliction of Emotional Distress 4. Negligence 5. Negligent Hiring, Supervision and Retention; Case No. 23CMCV01470; Superior Court of California, County of Los Angeles; Nathan Tejada, a minor, by and through his Guardian ad Litem Jeanett Tejada, Plaintiff v. Los Angeles Unified School District, a public entity; Los Angeles County Office of Education, a public entity; City of Los Angeles, a public entity; County of Los Angeles, a public entity; John Doe, an individual; and Does 1-100, inclusive, Defendants.
5. Downtown LA Law Group
 Summons & Complaint: 1. Premises Liability; Case No. 23NWCV01735; Superior Court of California, County of Los Angeles; Michael Delgado, a minor, by and through his guardian ad litem Isabel Alvarez, Plaintiff v. Los Angeles Unified School District, a public entity; Los Angeles County Office of Education, a public entity; City of Maywood, a public entity; County of Los Angeles, a public entity; and Does 1 to 50, inclusive, Defendants.
6. Downtown LA Law Group
 Summons & Complaint: 1. Premises Liability; Case No. 23STCV20069; Superior Court of California, County of Los Angeles; Erica Nunez, an individual, Plaintiff v. Los Angeles Unified School District, a public entity; City of Los Angeles, a public entity; Los Angeles County Office of Education, a public entity; County of Los Angeles, a public entity; and Does 1 through 50, inclusive, Defendants.
7. Frontier Law Center
 Summons & Complaint: 1. Deprivation of Civil Rights – First Amendment Religious Freedom, 42 U.S.C. § 1983 2. Deprivation of Civil Rights Article 1 § 4 California Constitution 3. Harassment Government Code § 12940 (j)(1) 4. Religious Discrimination Government Code § 12940(a) 5. Retaliation Government Code § 12940 (h) and (1)(4) 6. Failure to Accommodate Government Code § 12940 (1)(1) 7. Violation of FEHA – Failure to Take All Reasonable Steps Necessary to Prevent Discrimination from Occurring; and 8. Intentional Infliction of Emotional Distress; Case No. 2:23-cv-08358 JAK; United States District Court for the Central District of California; Clarence Graham, an individual, Plaintiff(s) v. Los Angeles Unified School District, a government entity; and Does 1 to 100, inclusive, Defendant(s).
8. Herman Law
 Summons & First Amended Complaint for Damages: 1. Negligence (School) 2. Negligence (Does 2 through 25) 3. Negligent Hiring, Retention, and Supervision (School) 4. Negligent Hiring, Retention, and Supervision (Does 2

through 25); Case No. 23STCV10823; In the Superior Court of the State California in and for the County of Los Angeles; Enricka Norwood-Scott, Plaintiff v. Los Angeles Unified School District; and Does 2 through 25, inclusive, Defendants.

9. Herman Law
Summons & First Amended Complaint for Damages: 1. Negligence (School) 2. Negligence (Does 2 through 25) 3. Negligent Hiring, Retention, and Supervision (School) 4. Negligent Hiring, Retention, and Supervision (Does 2 through 25); Case No. 23STCV11531; In the Superior Court of the State California in and for the County of Los Angeles; H.M., Plaintiff v. Los Angeles Unified School District; and Does 2 through 25, inclusive, Defendants.
10. Law Offices of Goldberg & Gage
Summons & Complaint for Monetary Damages; Demand for Jury Trial: 1. Negligence 2. Negligent Failure to Warn 3. Breach of Mandatory Duty; Case No. 23BBCV02296; Superior Court of the State of California for the County of Los Angeles; John Doe, a minor, by and through his guardian ad litem, Plaintiff v. Los Angeles Unified School District, Kirk Jeppson, Gary Aragon, Lisa Donley-Jay, and Does 1 to 100, inclusive, Defendants.
11. Law Offices of Hamed Yazdanpanah
Summons & Complaint for Damages (Negligence); Case No. 22STCV28749; Superior Court of the State of California, Los Angeles County; Carrine Stalowsky, Plaintiff, v. Anjelika Kegeyan; LAUSD; Los Angeles Unified School District; and Does 1-50, inclusive, Defendants.
12. Law Offices of Katherine Lipel
Summons & Complaint for: 1) Negligence 2) Premises Liability; Case No. 23VECV03243; Superior Court of the State of California, County of Los Angeles; Emigdia Pineda as Guardian Ad Litem for Gabriel Cardenas, a minor, Plaintiff v. Los Angeles Unified School District, a governmental entity and Does 1 through 50, inclusive, Defendants.
13. Law Offices of Ramin R. Younessi, A Professional Law Corporation
Summons & Complaint for Damages for: 1. Discrimination in Violation of Gov't Code §§12940 et seq.; 2. Harassment in Violation of Gov't Code §§12940 et seq.; 3. Retaliation in Violation of Gov't Code §§12940 et seq.; 4. Failure to Prevent Discrimination, Harassment and Retaliation in Violation of Gov't Code §12940(k); 5. Failure to Provide Reasonable Accommodations in Violation of Gov't Code §§12940 et seq.; 6. Failure to Engage in a Good Faith Interactive Process in Violation of Gov't Code §§12940 et seq.; 7. Declaratory Judgment; 8. Violation of the Ralph Civil Rights Act (Civil Code §51.7); 9. Violation of the Tom

Bane Civil Rights Act (Civil Code §52.1); 10. Wrongful Termination in Violation of Public Policy; and 11. Failure to Permit Inspection of Personnel and Payroll Records (Cal. Labor Code §1198.5); Case No. 23STCV21671; Superior Court of the State of California for the County of Los Angeles, Central District; Maria Eugenia Tapia, an individual, Plaintiff v. Los Angeles Unified School District, a California school district; Henry Ponce; an individual; Oscar Pedroza, an individual; and Does 1 through 20, inclusive, Defendants.

14. Law Offices of Sharona Eslamboly Hakim Summons & Complaint: 1. General Negligence 2. Premises Liability; Case No. 22CMCV00624; Superior Court of California, County of Los Angeles; Emily Guzman, by and through her Guardian Ad Litem, Erica Aguilar, Plaintiff v. Los Angeles Unified School District, and Does 1 to 25, inclusive, Defendants.

15. Manly Stewart Finaldi Summons & Plaintiff's Complaint for Damages for: (1) Intentional Infliction of Emotional Distress; (2) Negligence; (3) Negligent Supervision; (4) Negligent Retention/Hiring; (5) Negligent Failure to Warn, Train or Educate; (6) Breach of Fiduciary Duty; (7) Constructive Fraud (Civil Code §1573); (8) Sexual Battery; (9) Sexual Assault; Case No. 23STCV23998; Superior Court of the State of California, County of Los Angeles, Central District; Jane RS Doe, an individual, Plaintiff v. Los Angeles Unified School District, a California Local Public Entity; Mark Berndt, an individual; and Does 1-50, Defendant.

16. Mardirossian Akaragian LLP Summons & Complaint for Damages: 1. Negligent Act or Omission of Public Entity or Public Employee [Cal. Gov't Code § 815.2 and Cal. Veh. Code §22350]; Case No. 23STCV22171; Superior Court of the State of California for the County of Los Angeles; Hrayr Estantbouljian, Plaintiff v. Los Angeles Unified School District, Carlos Antonio Mejia Cortez; and Does 1 through 20, Inclusive, Defendants.

17. Markaryan Law, PC Summons & Complaint for: 1) Motor Vehicle 2) General Negligence; Case No. 23CHCV03061; Superior Court of California, County of Los Angeles; Alen Markaryan, an individual, Plaintiff v. Los Angeles Unified School District, a public entity; Does 1 to 10, inclusive, Defendants.

18. Office of the Attorney General Summons & Petition for Writ of Mandate (Code Civ. Proc., § 1085); Complaint for Injunctive and Declaratory Relief; Case No. 23STCP03720; Superior Court of the State of California, County of Los Angeles; California School Finance Authority, a California State

Agency, and State Allocation Board, a California State Board, Petitioners and Plaintiffs v. Los Angeles Unified School District; Board of Education of the City of Los Angeles; Alberto M. Carvalho, Superintendent of the Los Angeles Unified School District, in his official capacity; and Does 1 through 20, inclusive, Respondents and Defendants.

19. Peiffer Wolf Carr Kane Conway & Wise, LLP
 Summons & Plaintiff's First Amended Complaint for Damages: 1. Negligent Supervision/ Failure to Warn; Case No. 22AHCV01369; Superior Court of the State of California, County of Los Angeles, Glendale Courthouse; Jane Doe J.S., Plaintiff v. Defendant Doe 1 (Defendant School), a public entity, Defendant Doe 2, Los Angeles Unified School District, a public entity, and Does 3-50, inclusive, Defendants.

The recommended disposition of the following item is "Refer to Superintendent for referral to the Office of the Risk Management and Insurance Services":

<u>No.</u>	<u>Received From</u>	<u>Type of Damage</u>	<u>Claimant</u>	<u>Date of Damage</u>
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20.	Alicia Harris	Damages	Alicia Harris	6-12-2023
21.	Matthew J. Geragos	Damages	Allyson Scarlett Piceno	4-26-2023
22.	Andrea M. Mancilla M.	Damages	Andrea M. Mancilla M.	9-14-2023
23.	Salvador Zarate	Damages	Angel Zarate	9-29-2023
24.	Justin R. Rogal Mann Rogal APC	Damages	Ashley Benitez	4-26-2023, 10-5-2023
25.	Kulwant K. Grewal	Damages	Berleen Grewal	9-13-2023
26.	Bernetta Griffin	Damages	Bernetta Griffin	9-14-2023
27.	Carrin Spalding	Damages	Carrin Spalding	10-15-2021 - Present
28.	Carol Attarian City of Los Angeles	Damages	City of Los Angeles	7-20-2023
29.	Louis Krass The Injury Law Center	Damages	Daymond Johnson	4-17-2023 (2 received)
30.	Alice Lee	Damages	Derrick Choi	9-22-2023
31.	Vasili Brasinikas Oshea Orchid Public Employees Legal, LLP	Damages	Donna White	3-16-2023 – Present

32.	Shaun Bauman Bauman Law, APLC	Damages	Elijah Lee Boston	4-28-2023
33.	Geoffrey C. Lyon Lyon Law	Damages	Geovanna Alfaro	5-03-2023 (2 received)
34.	Luis A. Carrillo Carrillo Law Firm, LLP	Damages	Giselle Sanchez	5-26-2023
35.	Gloria Gross	Damages	Gloria Gross	10/2022
36.	Joseph P. Pierry Pierry Law Firm Joshua C. Cohen Cohen Law Partners	Damages	Hana Ahmed, a minor by and through her Guardian ad Litem, Hani Ahmed	4-25-2023
37.	Joseph P. Pierry Pierry Law Firm Joshua C. Cohen Cohen Law Partners	Damages	Hani Ahmed, individually; Hani Ahmed as Personal Representative of and Successor in Interest to Ghadah Imad Abduljabbar	4-25-2023
38.	Slava Kasrelievich Abir, Cohen, Treyzon & Salo LLP	Damages	Hilary Denise Godoy	Late March & April 10, 2023
39.	Joseph P. Pierry Pierry Law Firm Joshua C. Cohen Cohen Law Partners	Damages	Imad Abduljabbar Sulaiman	4-25-2023 (2 Received)
40.	Joseph P. Pierry Pierry Law Firm Joshua C. Cohen Cohen Law Partners	Damages	Jana Ahmed, a minor, by and through Guardian ad Litem, Hani Ahmed	4-25-2023

41.	David Slater Law Offices of David Slater	Damages	Jayden Gil	9-15-2023
42.	Aaron Brock Brock & Gonzales	Damages	Joel Chicas	2022-2023 school year
43.	Louis Krass The Injury Law Center	Damages	John Simmons	4-17-2023
44.	Lauren Wilson	Damages	Kendell R. Wilson (Student) Lauren Wilson (Parent)	9-29-2022
45.	Ted Ravan Ravan Law	Damages	Lashaun Roberts	9-08-2023
46.	Laura Cardena	Damages	Laura Cardenas	10-17-2023
47.	Louis Krass The Injury Law Center	Damages	Lydia Brown	4-17-2023 (2 received)
48.	Lynda J. Cortes	Damages	Lynda J. Cortes	10-02-2023
49.	Martin Lavitt through Attorney Thomas Johnston Johnston and Hutchinson, LLP	Damages	Martin Lavitt	6-09-2023
50.	Patricia D. Alabise The Dominguez Firm LLP	Damages	Mitrell Dewayne Shirley (Guardian Michael Shirley)	5-01-2023
51.	Joseph P. Pierry Pierry Law Firm Joshua C. Cohen Cohen Law Partners	Damages	Nidhal Mahmood Almahide	4-25-2023 (3 Received)

52.	Brendan P. Gilbert	Damages	Omar Rodriguez through his guardian ad litem Olivia Cuadra	August 2022- August 2023
53.	Penny Lavitt through attorney Thomas Johnston Johnston and Hutchinson, LLP	Damages	Penny Lavitt	6-09-2023
54.	Daniel Hakhamzadeh Proper Law	Damages	Randy Zelaya	9-11-2023
55.	Downtown LA Law Group	Damages	Rodrigo Lara Jimenez	5-02-2023
56.	Louis Krass The Injury Law Center	Damages	Royal Clark	4-17-2023 (2 received)
57.	Louis Krass The Injury Law Center	Damages	Ruth Ramos	4-17-2023 (2 Received)
58.	Samuel P. Cortese-McLean	Damages	Samuel P. Cortese McLean	“various dates”
59.	Sayuri Nomoto Gerald L. Marcus Law Offices of Gerald L. Marcus	Damages	Sayuri Nomoto	5-01-2023
60.	Tracy Baer Baer Treger LLP	Damages	Shante Brown	4-17-2023
61.	Louis Krass The Injury Law Center	Damages	Sheila Nunez	4-17-2023
62.	Taya Jones	Damages	Taya Jones	4-21-2023

63.	Louis Krass The Injury Law Center	Damages	Vanjelique Johnson	4-17-2023
64.	Janet A. Ariza Martin Martin LLP	Damages	William Usher Sanchez	4-13-2023 – Present
65.	Erika Roa Insurance Agent for Ana Vargas	Vehicle Damages	Ana Vargas	8-15-2023
66.	Angel Lara	Vehicle Damages	Angel Lara	9-28-2023
67.	Ashley Juarez	Vehicle Damages	Ashley Juarez	5-18-2023
68.	Carlos Gonzalez	Vehicle Damages	Carlos Gonzalez	9-05-2023
69.	Jada B. Anderson	Vehicle Damages	Jada B. Anderson	4-14-2023
70.	Brigitte Carroll Anderson Carl Warren & Company	Vehicle Damages	LACMTA	4-17-2023
71.	Kelly Pollard on behalf of Mercury Insurance	Vehicle Damages	Mercury Insurance as Subrogee of Sthefanie Rodriguez	6-08-2023
72.	Mikhael Roussos	Vehicle Damages	Mikhael Roussos	10-12-2023
73.	Mohammad Shah	Vehicle Damages	Mohammad Shah	10-11-2023
74.	Oswaldo Munoz West Hollywood Law Group, PC	Vehicle Damages	Oswaldo Munoz	9-18-2023

75.	Stacy Morales	Vehicle Damages	Stacy Morales	10-03-2023
76.	Tiffany Rifkin	Vehicle Damages	Tiffany Rifkin	10-10-2023
77.	Yelitza Kassandra Duenas	Vehicle Damages	Yelitza Kassandra Duenas	7-14-2023
78.	Zenaida Reynado	Vehicle Damages	Zenaida Reynado	4-28-2023
79.	Agustin Valladares	Vehicle Damages	Agustin Valladares	8-31-2023
80.	Arnel Camacho Airport Van Rental (AVR)	Vehicle Damages	Airport Van Rental (AVR)	10-05-2023
81.	Ashkan Aghajani	Vehicle Damages	Ashkan Aghajani	8-08-2023
82.	Astghik Gevorgyan / Alex Megeredchian Megeredchian Law	Vehicle Damages	Astghik Gevorgyan	10-10-2023
83.	Brittany Bishop	Vehicle Damages	Brittany Bishop	8-15-2023
84.	Carolina Laureano	Vehicle Damages	Carolina Laureano	8-15-2023
85.	Claudette Turner	Vehicle Damages	Claudette Turner	8-22-2023
86.	Nazaretian & Besnilian, APC	Vehicle Damages	Cristian Giovanni Rivas	4-28-2023

87.	David Tulpo	Vehicle Damages	David Tulp	8-10-2023
88.	Edgardo Contino	Vehicle Damages	Edgardo Contino	3-13-2023
89.	Juan Chavez	Vehicle Damages	Huysean Leng	3-16-2023
90.	Jennifer Sifuentes	Vehicle Damages	Jennifer Sifuentes	10-18-2023
91.	Melissa Shelton	Vehicle Damages	Melissa Shelton	10-18-2023
92.	Patricia Mata	Vehicle Damages	Patricia Mata	9-26-2023
93.	Roger E. Taylor	Vehicle Damages	Roger E. Taylor	9-21-2023
94.	Michael J. Cody Macdonald & Cody, LLP	Vehicle Damages	Saba Sabet-Raskekh	3-18-2023
95.	Silvia Sanchez	Vehicle Damages	Silvia Sanchez	8-30-2023
96.	Tammy Bartell obo State Farm Mutal Auto Ins Co	Vehicle Damages	State Farm Mutual Auto Ins Co a/s/o Adam Markovitz	8-16-2023
97.	Victor M. Silva	Vehicle Damages	Victor M. Silva	8-15-2023
98.	Yajaira Ascencio	Vehicle Damages	Yajaira Ascencio	4-13-2023

**WILLIAMS AND STATE PRESCHOOL HEALTH AND SAFETY
UNIFORM COMPLAINT
QUARTERLY REPORT SUMMARY
1st Quarter 2023/2024**

DISTRICT NAME: Los Angeles Unified School District

DATE: October 17, 2023

QUARTER COVERED BY THIS REPORT:

July, August, September 2023

Williams Uniform Complaints:

	Number of Complaints Received in Quarter	Number of Complaints Resolved	Number of Complaints Unresolved
Textbooks and Instructional Materials	1	1	0
Facility Conditions	125	54	71
Teacher Vacancy or Misassignment	4	4	0
Totals	130	59	71

State Preschool Health and Safety:

	Number of Complaints Received in Quarter	Number of Complaints Resolved	Number of Complaints Unresolved
Facility Conditions	0	0	0
Visual Supervision	0	0	0
Totals	0	0	0

SUBMITTED BY: Binh Nguyen 

TITLE: Director, Office of Student Civil Rights, Office of the General Counsel

Please note: The 71 unresolved complaints are still within the 30-day deadline. These are pending investigation and will be closed within the 30-day grace period.

Williams Project
Record Distribution Report
2023-2024 – 1st Quarterly Report
October 17, 2023

Board Member							
Board Member	Gross UCPs	Non-Wms UCPs	Net Wms UCPs	IM	MO	HR	Total
1	12	0	12	1	10	1	12
2	12	0	12	0	11	1	12
3	62	0	62	0	61	1	62
4	2	0	2	0	2	0	2
5	22	0	22	0	21	1	22
6	15	0	15	0	15	0	15
7	5	0	5	0	5	0	5
Other/Districtwide	0	0	0	0	0	0	0
Not Applicable	0	0	0	0	0	0	0
TOTAL	130	0	130	0	15	0	130
Local District							
Local District	Gross UCPs	Non-Wms UCPs	Net Wms UCPs	IM	MO	HR	Total
North	79	0	79	0	78	1	79
South	15	0	15	1	13	1	15
East	21	0	21	0	19	2	21
West	15	0	15	0	15	0	15
Non-Public	0	0	0	0	0	0	0
Not Applicable	0	0	0	0	0	0	0
DACE	0	0	0	0	0	0	0
TOTAL	130	0	130	1	125	4	130
Subject Area							
Subject Area	Gross UCPs	Non-Wms UCPs	Net Wms UCPs				
IM	1	0	1				
MO	125	0	125				
HR	4	0	4				
Non-Williams	0	0	0				
TOTAL	130	0	130				
2023-2024 UCPs							
Quarter	Net UCPs	IM	MO	HR			
Q1	130	1	125	4			
Q2	0	0	0	0			
Q3	0	0	0	0			
Q4	0	0	0	0			
TOTAL	130	1	125	4			

Legend: UCPs=Uniform Complaint Procedures: Wms=Williams: IM=Instructional Materials/Textbooks: MO=Facilities:
HR=Human Resources (Teacher Assignments)